

Andhra Pradesh Revenue Summonses Rules, 1959

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State of Andhra Pradesh - Act

Andhra Pradesh Revenue Summonses Rules, 1959

ANDHRA PRADESH

India

Andhra Pradesh Revenue Summonses Rules, 1959

Rule ANDHRA-PRADESH-REVENUE-SUMMONSES-RULES-1959 of 1959

Published on 23 June 1959

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Andhra Pradesh Revenue Summonses Rules, 1959

Published vide G.O.Ms. No. 1219, dated 23.6.1959

In exercise of the powers conferred by Section 3 of the Madras Revenue Summonses Act, 1869 (Act No. III of 1869) as amended by the Madras Revenue Summonses (A.P. Extension and Amendment) Act, 1958 (Act XX of 1958) the Governor of Andhra Pradesh hereby makes the following rules:

1.
These rules may be called the Andhra Pradesh Revenue Summonses Rules, 1959.

2.
In these rules unless the context otherwise requires,—

(a)

'Act' means the Madras Revenue Summonses Act, 1869 (Madras Act III of 1869) ;

(b)

'Form' means a form appended to these rules.

(c)

'Section' means a section of the Act.

3.

(1)

Every summon issued under the Act requiring the attendance of any person for the purpose of giving evidence, or both for the purpose of giving evidence and to produce any document or article, shall be in Form I.

(2)

Every summon issued under the Act merely for the production of any document or article shall be in Form II.

4.

(1)

Where summonses are issued at the instance of any party in an enquiry, the fee leviable for the service of processes under the Act shall, subject to the provisions of sub-rule (2) be Re. 1/- for each person on whom the process is to be served :

Provided that where an application is made at the same time for the service of processes on more than one person residing in the same village, the fee for the service of process on every such additional person shall be 50 np.

(2)

Where the service of any process is likely to involve the incurring of conveyance charges by the person serving the process, the officer issuing the summons may in addition to the fees specified in sub-rule (1) levy an additional fee not exceeding the charges likely to be so incurred.

5.

The process fee payable under these rules shall be paid in the form of Court-fee labels of the appropriate amount affixed on the application. The officer receiving the application shall punch the labels immediately on its receipt.

6.

(1)

Every person summoned under the Act to give evidence shall, upon attendance, be entitled to travelling and subsistence allowances as hereinafter provided.

(2)

The travelling allowance payable shall be the minimum fare for the to and fro journeys by a convenient public conveyance.

(3)

The subsistence allowance shall be such as may be determined by the officer issuing the summons, being not less than 75 np. and not greater than Rs. 2 for every day, on which the attendance of the person is required.

(4)

No travelling allowance or subsistence allowance shall be payable where the distance travelled by the person does not exceed 5 miles and the period during which he is required to be in attendance does not exceed six hours.

7.

Where the summons is proposed to be issued at the instance of any party in any enquiry, the party at whose instance the summons is to be issued shall be required to deposit in advance to the Officer issuing the summons an amount equal to the travelling and subsistence allowances payable under Rule 6, and no summons shall be issued until the amount has been so deposited.

Form I

Summoned to appear in person (and also to produce documents or articles)

To

A. B. of.....

Whereas your attendance is necessary to give evidence and to produce the following document or article* with reference to a Revenue inquiry**..... now pending before me, you are hereby summoned to appear in person before me on the day of at O' clock and not to depart hence until permitted by me.

Given under my hand and seal this day of ...19....

*Here describe the document or article with convenient certainty.

****Here enter briefly the subject of the enquiry**

(Official designation)

Form II

Summons to produce documents or articles

To

A.B. of.....

Whereas the following document or article *.....are required with reference to a Revenue Enquiry**.....now pending before me, you are hereby summoned to produce or cause to be produced the said document or article before me on theday of

*Here describe the document or article with convenient certainty.

****Here enter briefly the subject of the enquiry.**

(Official designation)

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